Casebook

Topic 1: Introduction to Intentional Torts

Hutchins v Maughan [1947] VLR 131; [1947] ALR 201 (Supreme Court of Victoria)

Facts:

The defendant laid poisonous baits on unfenced land which were subsequently picked up by the complainant's dogs. They died as a result. The complainant sued in trespass.

Decision:

The injury suffered by the complainant was consequential upon and not directly or immediately occasioned by the act of the defendant and trespass did not lie.

Extracts from Reasons:

HERRING CJ: [132] The complainant's claim was laid alternatively in negligence, nuisance or trespass. The police magistrate upheld the defences taken so far as negligence and nuisance were concerned, but gave judgment for the complainant on his trespass claim. Before me it was conceded that the police magistrate was right in his decision as to negligence and nuisance. And the only question argued before me was whether on the facts of the case the police magistrate could properly enter judgment as he did for the complainant on his trespass claim. The laying of the baits was admittedly an unlawful act, and consequently it was not disputed that the complainant had a cause of action for the injuries he suffered as a consequence thereof. But it was contended for the defendant that such cause of action sounded only in case and not in trespass, and that the complainant having failed in his claims in case, viz., those for nuisance and negligence, is now without remedy.

The basis of the defendant's contention was that the injury suffered by the complainant in the present case was not occasioned by but was merely consequential upon the defendant's act complained of, viz., the laying of the baits, and so was not a trespass. The principle was thus stated in 1725 in Reynolds v Clarke (1725) 93 ER 747:

> The distinction in law is, where the immediate act itself occasions a prejudice, or is an injury to the plaintiff's person, house, land, etc., and where the act itself is not an injury, but a consequence from that act is prejudicial to the plaintiff's person, house, land, etc. In the first case trespass vi et armis will lie; in the last it will not, but the plaintiff's proper remedy is by an action on the case.

In 1773 in the famous case of Scott v Shepherd (1773) 96 ER 525, Blackstone J said he "took the settled distinction to be that where the injury is immediate, an action of trespass will lie; where it is only consequential, it must be an action on the case." And he cited the example of a man's throwing a log into the highway; an example later made use of by Le Blane J in 1803 in Leame v Bray (1803) 102 ER 724 where the learned Judge said:

> But in all the books the invariable principle to be collected is that where the injury is immediate on the act done, there trespass lies; but where it is not immediate on the act done, but consequential, there the remedy is in case. And the distinction is well instanced by the example put of a man's throwing a log into the highway; if at the time of its being thrown it hit any person, it is trespass; but if after it be thrown, any person going along the road receive an injury by falling over it as it lies there, it is case ... trespass is the proper remedy for an immediate injury done by one to another; but where the injury is only consequential from the act done, there it is case.

... Each case must, of course, be determined on its own facts and in the present case the question is whether on its facts the injury the complainant suffered in the loss of his dogs was immediate or consequential, that is to say, whether it was directly occasioned by the defendant's act in laying the baits or was merely consequential upon that act. Now the baits were laid by the defendant before the complainant took his dogs on to the land in question. They may even have been laid before he arrived in the vicinity. And had he not chosen to come into the vicinity and bring his dogs with him he would have suffered no injury from the defendant's act. Nor indeed would he have done so, had he not taken his dogs on to the land where the baits were laid. The doing of the act therefore of itself did him no mischief. Before he could suffer an injury, he had himself to intervene by coming to the land and bringing his dogs thereon.

In these circumstances the injury he suffered cannot, in my opinion, be said to have followed so immediately in point of causation upon the act of the defendant as to be termed part of the act. It should rather be regarded merely as consequential upon it and not as directly or immediately occasioned by it. And so trespass does not lie in respect of [the] defendant's act in laying the baits. Had the baits been thrown by the defendant to the complainant's dogs, then no doubt the injury could properly have been regarded as directly occasioned by the act of the defendant, so that trespass would lie. As it was, it was necessary for the complainant himself to bring his dogs with him to the baits in order that the injurious consequences, of which he complains, should result from the defendant's act. His position is like that of the man who, going along the road upon which a log has been thrown, receives an injury by falling over it. In such a case the man

who threw the log upon the road has, of course, caused the mischief, but trespass does not lie, as the injury is consequential upon his act and not immediately or directly occasioned thereby. Had the man who fell over the log not passed that way, he would have suffered no injury from the other's act.

Williams v Milotin (1957) 97 CLR 465 (High Court of Australia)

Facts and Procedural History:

A young boy (the plaintiff) was riding his bicycle on a public street when he was hit by a truck driven by the defendant. The boy was injured. The boy sued the driver for damages, arguing that the driver had acted negligently. The incident happened on May 7, 1952, but the lawsuit was not officially started until July 19, 1955. This was more than three years after the accident, but less than six years after.

The law at the time had different "limitation periods" (deadlines) for different types of legal claims.

- Lawsuits for "trespass to the person" (direct physical contact) had to be started within **3 years**.
- Lawsuits based on "negligence" (an action on the case) could be started within **6 years**.

The plaintiff was successful at first instance. The defendant appealed.

The defendant argued that because the accident involved direct contact, the case should be treated as "trespass." Since more than 3 years had passed, he claimed the lawsuit was too late and should be thrown out. The plaintiff argued that he had brought the case as a claim for "negligence," which meant the 6-year deadline should apply.

Decision:

Appeal Dismissed. The plaintiff was allowed to use the longer 6-year period because they specifically framed their case as an action for negligence. Courts recognise that the same set of facts can sometimes fit into different legal categories or causes of action. Plaintiffs are generally entitled to choose the cause of action they want to pursue, provided they can prove the necessary elements for that specific claim.

Extracts from Reasons:

DIXON CJ, McTIERNAN, WILLIAMS, WEBB AND KITTO JJ: [469] [T]he defendant's starting point is that the action the plaintiff has brought could formerly have been properly framed as an action of trespass to the person.

The word "formerly" seems to mean prior to the passing of the Supreme Court Act 1878 of South Australia, by which the "judicature system" was adopted: cf. definition in s 5 of the Supreme Court Act 1935 (SA).

At that time the present action might have been framed as an action of trespass. For it seems that the facts which the plaintiff, by his next friend, intends to allege are that he was immediately or directly hit by the motor car driven by the defendant as a result of the negligence of the defendant himself. There is no suggestion that the defendant intended to strike him. If that had been the allegation the action could have been brought in trespass and not otherwise. But as only the negligence of the defendant is relied upon, while the cause of action might have been laid as trespass to the person, the action might also have been brought as an action on the case to recover special or particular damage caused by the defendant's negligence. Had the damage been caused indirectly or immediately by the defendant or by his servant (a state of things to be distinguished from violence immediately caused by the defendant's own act) the action must have been brought as an action on the case and not otherwise. ...

[O]n the same set of facts two causes of action arose to which different periods of limitation were respectively affixed. In saying that two causes of action arose no more is meant than that two traditional categories continue to exist in the contemplation of the material provisions of s 35(c) and (k) and s 36 and that there is no difficulty in distinguishing between the categories either notionally or historically.

Plainly enough the plaintiff relies on the category which we commonly call negligence but which the statute looks at as an action of the kind which once was brought for the recovery of special or particular damage caused by conduct on the part of the defendant making it actionable, in this instance negligence. Why should the plaintiff's action be limited by any other period of time than that appropriate to the cause of action on which he sues? The two causes of action are not the same now and they never were. When you speak of a cause of action you mean the essential ingredients in the title to the right which it is proposed to enforce. The essential ingredients in an action of negligence for personal injuries include the special or particular damage – it is the gist of the action – and the want of due care. Trespass to the person includes neither. But it does include direct violation of the protection which the law throws round the person. It is true that in the absence of intention of some kind or want of due care, a violation occurring in the course of traffic in a thoroughfare is not actionable as a trespass. It is unnecessary to inquire how that comes about. It is perhaps a modification of the general law of trespass to the person. But it does not mean that trespass is the same as actionable negligence occasioning injury. It happens in this case that the actual facts will or may fulfil the requirements of each cause of action. But that does not mean that within the provisions of the Limitation of Actions Act 1936, ss 35 and 36, only one "cause of action" is vested in the plaintiff.

If he had chosen to discard negligence and special or particular damage as ingredients in his cause of action and rely instead on the elements amounting to trespass or assault, something might be said for the defendant's reliance on s 36. But not otherwise. Read together, the true meaning and effect of s 35 and s 36 is that six years shall be the period of limitation for an action of damages based on negligence which formerly might have been brought as an action on the case in which the damages formed the gist of the action and negligence giving rise to the damage formed the conduct by reason of which it became actionable.

In our opinion the decision of the Supreme Court is right and the appeal should be dismissed.